



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 2893774

Date: JAN. 24, 2025

Appeal of Nebraska Service Center Decision

Form I-140, Immigrant Petition for Alien Workers (National Interest Waiver)

The Petitioner, a mechatronics engineer who intends to create a company, seeks employment-based second preference (EB-2) immigrant classification as an individual of exceptional ability, as well as a national interest waiver of the job offer requirement attached to this classification. *See* Immigration and Nationality Act (the Act) section 203(b)(2), 8 U.S.C. § 1153(b)(2).

The Director of the Nebraska Service Center denied the petition, concluding the record did not establish that the Petitioner did not establish eligibility for a national interest waiver as he did not demonstrate the national importance of the proposed endeavor; that he is well-positioned to advance the proposed endeavor; or that, on balance, waiving the job offer requirement would benefit the United States. The matter is now before us on appeal pursuant to 8 C.F.R. § 103.3.

The Petitioner bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). We review the questions in this matter de novo. *Matter of Christo's, Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). Upon de novo review, we will dismiss the appeal.

I. LAW

To qualify for the underlying EB-2 visa classification, a petitioner must establish they are an advanced degree professional or an individual of exceptional ability in the sciences, arts, or business. Section 203(b)(2)(A) of the Act.

If a petitioner establishes eligibility for the underlying EB-2 classification, they must then demonstrate that they merit a discretionary waiver of the job offer requirement “in the national interest.” Section 203(b)(2)(B)(i) of the Act. *Matter of Dhanasar*, 26 I&N Dec. 884, 889 (AAO 2016), provides the framework for adjudicating national interest waiver petitions. *Dhanasar* states that U.S. Citizenship and Immigration Services (USCIS) may, as matter of discretion,¹ grant a national interest waiver if the petitioner demonstrates that:

¹ *See Flores v. Garland*, 72 F.4th 85, 88 (5th Cir. 2023) (joining the Third, Ninth, Eleventh, and D.C. Circuit Courts of Appeals in concluding that USCIS’ decision to grant or deny a national interest waiver is discretionary in nature).

- The proposed endeavor has both substantial merit and national importance;
- The individual is well-positioned to advance their proposed endeavor; and
- On balance, waiving the job offer requirement would benefit the United States.

Id.

II. ANALYSIS

The Petitioner asserts on appeal that he is an entrepreneur who intends to “create a company providing industrial automation and mechatronics services and professional training based in [REDACTED] [REDACTED] Through his company, the Petitioner intends to “provide solutions and services to optimize industrial processes, improve efficiency and productivity, [] integrate automated systems in factories and production lines,” and “provide specialized training . . .”

The Director determined the Petitioner qualifies for the underlying EB-2 visa classification as an individual of exceptional ability in the sciences, arts, or business.² The Director also determined the Petitioner demonstrated the substantial merit of the proposed endeavor but did not establish its national importance. In addition, the Director found the Petitioner is not well-positioned to advance the proposed endeavor and, on balance, it would not be beneficial to the United States to waive the requirements of a job offer, and thus of a labor certification.

A. Substantial Merit and National Importance

The first prong, substantial merit and national importance, focuses on the specific endeavor that the individual proposes to undertake. *Matter of Dhanasar*, 26 I&N Dec. at 889. The endeavor’s merit may be demonstrated in a range of areas such as business, entrepreneurialism, science, technology, culture, health, or education. *Id.* In determining whether the proposed endeavor has national importance, we consider its potential prospective impact. *Id.* In *Dhanasar*, we noted that “we look for broader implications” of the proposed endeavor and that “[a]n undertaking may have national importance for example, because it has national or even global implications within a particular field.” *Id.* We also stated that “[a]n endeavor that has significant potential to employ U.S. workers or has other substantial positive economic effects, particularly in an economically depressed area, for instance, may well be understood to have national importance.” *Id.* at 890.

On appeal, the Petitioner asserts his proposed endeavor has national importance as his intended company is related to fields, industrial automation and mechatronics, of national importance or subjects of national initiatives. The Petitioner contends these fields allow for increased productivity

² The Director found the Petitioner met three criteria for eligibility to demonstrate extraordinary ability in the sciences, arts, or business. In part, the Director determined the Petitioner established evidence of membership in a professional association under 8 C.F.R. § 204.5(k)(3)(ii)(E), as he “submitted his license from CREA “Titulo em Electronica.””. In order to satisfy this criterion, the Petitioner must demonstrate this is a professional association, which requires its members to have earned a U.S. baccalaureate degree or its foreign equivalent. *See* 8 C.F.R. § 204.5(k)(2). However, the transcripts for the Petitioner’s industrial mechatronics degree appear to indicate it was a three-year program and a U.S. baccalaureate degree generally requires four years of education. *Matter of Shah*, 17 I&N Dec. 244 (Reg’l Comm’r 1977). The record does not appear to support the finding that the Petitioner is a member of an association that requires a U.S. baccalaureate degree or its equivalent for its members. However, as we concur with the Director that the Petitioner is ineligible for a national interest waiver on a separate ground, we will not further address this ground of ineligibility on appeal.

and technological advancement in multiple sectors, which in turn benefits the growth and competitiveness of the national economy. However, while we acknowledge the importance of the fields of industrial automation and mechatronics, the importance of the proposed endeavor is not evaluated by the importance of the profession in which he proposes to engage, but the specific potential prospective impact of the specific endeavor. *Dhanasar* at 889-890. The purpose of the national interest waiver is not to ensure a petitioner's employment in industries that may have national significance. Rather, anyone seeking a waiver must show that the specific endeavor they propose to undertake has national importance. *Id.* Therefore, the general significance or potential impact of the industries in which the Petitioner's company would operate does not specifically inform the importance of the Petitioner's own proposed endeavor. Here, the Petitioner has not demonstrated his contributions to the industrial automation and mechatronics fields has a wider impact beyond his own business and clients, and at a level commensurate with national importance. The Petitioner also intends to disseminate the knowledge he acquired as an electromechanical and mechatronic technician by training others. But similarly, the Petitioner has not shown that training others in the fields of industrial automation and mechatronics has broader implications for the field. *Dhanasar* explains that STEM teaching will not necessarily impact the field of STEM teaching more broadly, in a manner which rises to the level of national importance. *See Matter of Dhanasar* at 893. Like teaching, in which the benefits generally affect the students taught, the training the Petitioner plans to provide is generally limited to benefiting the students he would train.

The Petitioner asserts that as an immigrant entrepreneur, he will be "part of the small business segment, which moves the American economy." The Petitioner specifies his company will generate economic benefits for the United States through "the supply chain of the business; the generation of direct and indirect jobs; positive impacts of the business for the area with economic depression; [and] the collection of taxes." However, the Petitioner has not submitted supporting evidence to demonstrate the specific endeavor he proposes to undertake has significant potential to employ U.S. workers or otherwise offers substantial positive economic effects for our nation. Without sufficient information or evidence regarding any projected U.S. economic impact or job creation attributable to his future company, the record does not show that benefits to the regional or national economy resulting from the Petitioner's endeavor would reach the level of substantial positive economic effects contemplated by *Dhanasar*. *Id.* at 890.

B. Additional *Dhanasar* Prongs and Ineligibility

As our finding on this issue is dispositive of the Petitioner's appeal, we decline to reach and reserve whether the Petitioner has met the additional prongs of the *Dhanasar* framework and whether the Petitioner is an individual of exceptional ability, as discussed in the footnote above. *See INS v. Bagamasbad*, 429 U.S. 24, 25 (1976) (stating that "courts and agencies are not required to make findings on issues the decision of which is unnecessary to the results they reach"); *see also Matter of L-A-C-*, 26 I&N Dec. 516, 526 n.7 (BIA 2015) (declining to reach alternative issues on appeal where an applicant is otherwise ineligible).

III. CONCLUSION

As the Petitioner has not met the requisite first prong of the *Dhanasar* analytical framework, we conclude the Petitioner has not demonstrated eligibility for or otherwise merits a national interest waiver as a matter of discretion.

ORDER: The appeal is dismissed.